

26STCP00690 26STCP00690

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-25

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Case Number: 26STCP00690 Hearing Date: June 25, 2026 Dept: 26

TENTATIVE RULING:

On February 19, 2026, Petitioner National Default Servicing Corporation ("Petitioner") filed the instant Petition and Declaration Regarding Unresolved Claims and Deposit of Undistributed Surplus Proceeds of Trustee's Sale (the "Petition") with respect to the real property located at 120 West 3rd Street, Azusa, California. (Pet., ¶12.) The Court set the hearing on the Petition for June 25, 2026. On June 8, 2026, Claimants Angel R. Sanchez and Lydia Morales filed separate claims to the funds.

The amount of proposed deposit is \$18,178.57, after deducting Petitioner's attorney fees and expenses. (Pet., ¶16.) Having reviewed the Petition, the Court finds that it satisfies the requirements of Civil Code section 2924j with respect to the contents of the Trustee's declaration, Trustee's notice, and service of written notice to all potential claimants to the surplus funds. Based on the foregoing, the Petition to Deposit Undistributed Surplus Proceeds of Trustee's Sale and for Discharge of Liability is granted effective upon Petitioner's compliance with this order, as follows.

The Hearing on Claims to the Undistributed Surplus Proceeds (Disbursement Hearing) is set for 07/30/2026 at 1:30 pm in Department 26 in the Spring Street Courthouse. Each claimant must file a written claim within 30 days of this order. The written claim shall include a declaration setting forth the basis for the claim of ownership or interest. (Civ. Code, § 2924j, subd. (d).) All claimants must also personally appear at the disbursement hearing.

Petitioner is ordered to

deposit surplus funds of \$18,178.57 with
the Court within 30 days of this order. Petitioner is further ordered to give
notice of the Disbursement
Hearing to all potential claimants within
five days of this order and to file proof of notice on the docket.

Upon deposit of the funds with the Court and filing of the
proof of service of the Notice of Disbursement
Hearing, Petitioner shall be discharged from further responsibility for
the disbursement of the sale proceeds. (Civ. Code, § 2924j, subd. (c).)

Moving party to give notice to all parties, claimants, and
interested parties.